Quickserve Financial Services CC · Reg. No. CC/2026/01904
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READ THIS FIRST — COMPLIANCE & ACTION LIST

What this pack is. A complete set of professionally drafted microlending documents for QuickServe Cashloan (Quickserve Financial Services CC), written in plain English and built around Namibian law — chiefly the **Microlending Act 7 of 2018** and NAMFISA's rules for registered microlenders.

What this pack is not. It is **not a legal opinion**, and it is **not ready to hand to a borrower as it stands.** It is a strong first draft that a Namibian attorney must review and sign off before first use. This page tells you, and them, exactly what to check and why.

One honest limitation you must know about. The research behind these documents was done in an environment where the primary legal sources — the Act itself on NamibLII and the Legal Assistance Centre site, and NAMFISA's own website — were **blocked and could not be opened first-hand.** Every rule below comes from NAMFISA's consumer-education material and reputable secondary reporting, not from a direct reading of the gazetted text. That is why section numbers and exact figures are flagged for confirmation rather than stated as settled. Treat this page as a well-researched checklist for your lawyer, not as the final word.

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1. STOP-AND-CHECK ITEMS — DO NOT ISSUE ANY DOCUMENT UNTIL THESE ARE RESOLVED

1.1 **Are you registered with NAMFISA?** Operating as a microlender without registration is itself the offence — a fine of up to N$500,000 and/or up to five years' imprisonment — and no wording in any document cures it. If Quickserve Financial Services CC is not yet a NAMFISA-registered microlender, that comes first, before anything in this pack is used. **Registration is currently in progress.** Because it has not yet been granted, the documents in this pack have been worded so they do not state or imply that QuickServe is already registered with, or regulated by, NAMFISA. Do not add any such statement, and do not fill in a NAMFISA registration number, until the certificate is actually issued.

1.2 **The 30% ceiling — settled.** In Namibia the 30% ceiling on a short-term microloan is a **once-off** cap on **total finance charges** for the whole loan, and a service fee would count inside it. **Decision (November 2026): there is no service fee.** The only charge is one fixed finance charge of 30% of the amount lent, and the Pre-Agreement Statement, the Payday Loan Agreement and the Schedule of Fees all say so in the same words. The admin portal refuses to produce a statement or an agreement above 30%.

1.3 **Rollovers / extensions — your single highest legal risk.** Your ledger app currently charges **another full interest cycle** each time a loan is extended. On the same loan, that pushes total finance charges past the 30% ceiling, which is very likely **unlawful**. This pack takes the conservative position — an extension may not push cumulative charges past 30% of principal — but whether *any* further charge is lawful on a rollover, and whether an extension must instead be written up as a **brand-new loan with a fresh affordability check**, is the first question for your attorney and for NAMFISA. The agreement now says an extension is a new due date in writing, signed by both parties, with no new money paid out, and the schedule says total charges never go

above 30% — so the ledger's extra interest cycle on a rollover contradicts the paperwork until this is resolved.

1.4 **Fix the flyer's wording (done in this repo, confirm you are happy with it).** A bare "30% interest" with no period invites the unlawful reading "30% per month". The flyer has been updated to "30% once-off, not per month" with a disclosure ribbon. Keep it that way.

2. CONFIRM WITH YOUR ATTORNEY AND NAMFISA BEFORE PRINTING

2.1 **Late payment and early payment — confirm both.** By the owner's decision (November 2026), the documents charge **no late fees or default interest**: a written demand on the due date, then handover to a collector or attorney after 5 business days. They also say the finance charge is **fixed, and paying early does not reduce it**, so a 2-day loan costs the same 30% as a month-long one. Ask your attorney and NAMFISA to confirm the Microlending Act does not require a lower charge (a rebate) when a borrower settles early, and that the 5-business-day handover notice is enough.

2.2 **Every statute section number.** Because the primary sources could not be opened, section references (e.g. to the Microlending Act, the Usury Act 73 of 1968, the Magistrates' Court Act 32 of 1944, the Prescription Act 68 of 1969, the Credit Bureau Regulations) are drafted conservatively but **must be checked against the gazetted text** before the first print run.

2.3 **No cooling-off period.** At the owner's instruction (November 2026) the agreement and the quotation no longer offer a three-business-day cancellation right. Confirm with your attorney and NAMFISA that the Microlending Act and its regulations do not require one before you print.

2.4 **Submit the loan agreement to NAMFISA.** NAMFISA reviews and approves a microlender's loan-agreement form as part of registration, and publishes a standard form. Compare this agreement against theirs and submit it.

2.5 **The revenue stamp.** The Stamp Duties Act was amended in 2024. The agreement leaves a revenue-stamp box on the printed original but deliberately **prints no amount** — confirm the current duty with NAMRA.

2.6 **Data protection.** There is no Data Protection Act in force in Namibia, so the privacy notice is grounded in **contractual consent** and the statutory credit-check duty, not in a data-protection statute. Do not add a citation to a Namibian data-protection law.

2.7 **You must actually be subscribed to a registered credit bureau** and must actually complete and file a **written affordability assessment** for every loan. Several documents state that these were done; they must genuinely be done, not just recited.

3. CHANGES YOUR LEDGER APP NEEDS TO MATCH THIS PAPERWORK

The documents promise things the current app does not yet enforce. Flag these to whoever maintains the app:

3.1 **Cap validation.** Done for documents: the portal will not produce a statement or agreement above 30%. Make sure a loan cannot be saved in the ledger with `(interest + serviceFee) / principal` above

0.30 either.

3.2 **Cumulative-charge ceiling.** Never let total finance charges on one loan exceed 30% of its principal, however many extensions occur.

3.3 **Early settlement — reconciled.** The paperwork now matches the app: the finance charge is fixed and is not reduced for early payment (subject to the confirmation in 2.1).

3.4 **In duplum.** With no default interest, an unpaid loan does not grow. Rollover charges are the only way it could, which 1.3 and 3.5 address.

3.5 **Extension mechanism.** Rework rollovers away from "another full cycle": a new due date with no extra charge while the loan is at 30%, or a documented new loan with a fresh affordability check — see 1.3.

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4. CROSS-DOCUMENT ITEMS TO RECONCILE

An independent three-way review (a consumer-advocate reading, an adversarial-attorney reading, and an operations reading against the app) flagged these to tidy up before use. None is a legal error on its own; each is an internal-consistency point:

- **Statement, agreement and fee schedule — reconciled.** All three now share the same wording for the finance charge, paying early, late payment, extensions, how payments are applied, and the repayment account.
- **The payment-appropriation order** in the receipt, the final letter of demand and the acknowledgement of debt should use the same wording as the agreement: each payment clears the finance charge first and then the amount lent.
- **NAMFISA's contact details** appear with slight differences between documents — set them once and reuse.
- Replace every remaining **[SQUARE-BRACKET]** placeholder before printing; never present a document for signature with a bracket still showing.

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5. FILL-IN CHECKLIST — WHAT ONLY YOU CAN SUPPLY

Already filled in for you across the pack: **Quickserve Financial Services CC**, CC registration **CC/2026/01904**, and the phone/WhatsApp number **+264 81 281 9840**.

Also settled: the physical and postal address, email and principal officer (in every letterhead); the **30% fixed finance charge with no service fee**; **no default interest**; and the repayment account (**FNB Namibia, 64284783965, branch 282672**).

Still to fill in:

- NAMFISA microlender registration number and its expiry date — **leave blank until the certificate is issued; the pack deliberately makes no registration claim in the meantime**
- Your record-retention period and maximum-extensions policy

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6. THE DOCUMENTS IN THIS PACK

Before the loan — Loan Application Form · Pre-Agreement Statement & Quotation · Affordability Assessment Worksheet.

The loan — Payday Loan Agreement (one page) · Schedule of Fees & Charges · Payment Receipt. The Pre-Agreement Statement and the Payday Loan Agreement are also produced, filled in, by the admin portal; the statement can be sent to the client on WhatsApp as a private link.

When it is settled — Paid-Up Letter / Settlement Confirmation.

If it is not paid — Final Letter of Demand · Acknowledgement of Debt & Payment Arrangement.

Governance — Consent & Privacy Notice · Debit Order / Payment Authority Mandate.

This is a focused, professional set. Some optional or internal-only forms (a statement of account, an early-settlement quotation, a first-reminder letter, a write-off notice, and a client-rights charter) are intentionally left out to keep the pack lean; they can be added back at any time. **No rollover / loan-extension form is included on purpose** — until the rollover pricing is confirmed lawful (clause 1.3), issuing paperwork for it would encourage a practice that is likely unlawful.

Each document is supplied as an editable Word file (for you to fill in and adjust) and as a print-ready PDF (what the client receives).

Prepared as a drafting aid for Quickserve Financial Services CC. Not legal advice. Have a Namibian legal practitioner review the full pack before use.